

See also: The US Constitution and Bill of Rights 110–117 ■ The Declaration of the Rights of Man 118–119 ■ The exclusionary rule 186–187



Richard Nixon, when running for president in 1968, promised to crack down on crime. Central to his bid was a vow to overturn the Miranda decision, which he vehemently opposed.

suspect's right to a lawyer was affirmed, the lawyer to be provided at public expense if necessary. The Miranda warning has since become a routine introduction to all police questioning of suspects.

Background and decision

The decision's name comes from the case of Ernesto Miranda, a vagrant with a long history of criminal offenses. He had been arrested in Phoenix in 1963 on charges of rape and kidnapping. Three other cases were also considered by the Supreme Court. In each of them, the suspects, all tried and convicted, had not been explicitly advised of their rights under the Fifth Amendment.

The ruling, a majority decision, with five judges in favor and four against, sparked instant controversy. Many people saw it as a charter for criminals, with the obviously guilty being freed essentially on a technicality. Supreme Court justice James Harlan, who opposed the ruling, claimed, for example, that it amounted to a "hazardous

experimentation." North Carolina Democrat senator Sam J. Ervin complained that "self-confessed criminals are turned free ... because the arresting officer failed to tell the criminal something he already knew." New York Democrat senator Robert Kennedy countered with the question, "You think that additional warning in some way infringes upon effective law enforcement?"

Later developments

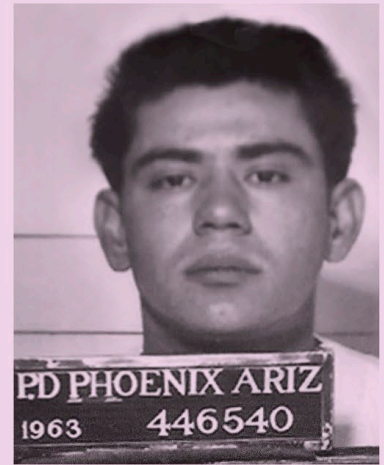
The issue of "additional warning" was pertinent. In all four cases, the suspects were described as men of "limited education" who were unlikely to have been aware of their rights under either the Fifth or Sixth Amendments. In addition, police interrogations were often hostile and frequently threatening. Although a later Supreme Court judgment in 2000, *Dickerson v. United States*, emphatically backed the Miranda decision, that of *Berghuis v. Thompkins* in 2010 significantly weakened it, ruling that the right to silence be held only if the suspect explicitly invoked it. ■



A serious problem in the enforcement of our criminal law will occur [if the right to silence is not observed].

Gary K. Nelson

**Miranda's defense lawyer (1935–2013),
to the Supreme Court**



Ernesto Miranda

Born in Mesa, Arizona, in 1941, Ernesto Miranda was almost the archetypal drifter. Even as a young teenager, his life was given over to petty crime followed by inevitable incarcerations in various penal institutions. His arrest in 1963 was another in a litany of such run-ins with the law, and he didn't deny his guilt. In fact, it was precisely because he confessed under interrogation without having been made aware of his right to silence and to legal representation that the Supreme Court overturned his conviction, despite the Arizona supreme court having supported the original decision to find him guilty.

He was then retried for the same crime, but with his confession withheld as evidence. The same guilty verdict and 20- to 30-year sentence was returned. After parole in 1972, he reverted to his former indigent life. Further arrests and periods in prison followed. He died in a knife fight in a Phoenix bar in 1976.